



Intellectual Property Office

Form TM3

Application to register a trade mark

**Fee £250 [Includes one class of goods or services]
£60 [for each additional class]**

Use this form to file your application to register a trade mark.

Do not use this form if you wish to pay a reduced fee, you can **save £45** by filing your application online.

††**NOTE:** The details indicated with †† will be published on our website shortly after receipt and may appear in external search engine results. You should provide a business or PO Box Address if you do not want your home address published.

Failure to reply to the examination report within the time allowed may result in the application being withdrawn/refused.

1. †† Full name

Proposed owner.

Owner type

Specify whether Person, Registered Company/LLP, Partnership, Trust or Other.

†† **Address**

If the address is not within the United Kingdom, Gibraltar or the Channel Islands you must also complete section 2 below.

Entitlement to hold property

Your trade mark may be declared null and void if you do not have the necessary standing to hold intellectual property. It is your responsibility to ensure the owner is legally capable of owning property in the name entered on this application.

	Postcode
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Email address

Complete if you have no representative and would like us to correspond with you by email.

Company registration number

Complete if the applicant is a company or LLP incorporated in the UK.

Country of incorporation

If registered in USA also enter the 'State' e.g. 'Delaware'.

2. †† Representative name

If you have no representative, go to section 3.

†† **Address**

The address provided in this section must be within the United Kingdom, Gibraltar or the Channel Islands.

NOTE: We will communicate with the representative, if this section has been completed.

	Postcode
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Email address

Complete if you would like us to correspond with you by email.

Representative type

Please tick appropriate box.

☐	IP Professional
☐	In-House IP department
☐	Lawyer/Solicitor
☐	Other

3. Trade mark type

99% of applications are Trade marks.
Certification marks – indicate that goods or services meet a defined quality standard.
Collective – indicate the goods or services of a member of a trade association.

☐	Trade mark
☐	Certification mark
☐	Collective mark

4. Number of trade marks in series

Enter number only if applying for a series of trade marks (Max. 6 trade marks).

NOTE: 'Series' is a number of marks with very small differences e.g. 'danryvol', 'DANRYVOL', 'Danryvol'.

££ More than 2 marks are subject to an additional fee of £60 per mark.

5. Representation of your trade mark or trade marks

Enter your trade mark in the space provided or attach on a separate sheet. Tick if attached.

☐

If your trade mark is a 3D shape and you are showing different views of the same mark please indicate the number of views in the box provided.
The max number of images per trade mark is 6.

6. Trade mark classification

You need to tell us which goods and services you are going to use your trade mark for. Goods and Services are classified in an internationally agreed list of classes. For information on how we classify: visit [How to classify trade marks - GOV.UK \(www.gov.uk\)](https://www.gov.uk/how-to-classify-trade-marks) You must tell us which class your goods and services belong in e.g. Class 25, Clothes.

You can search and classify goods and services using our classification search tool 'Search UK trade mark classes'. Visit: [Search UK trade mark classes by word or phrase – Search UK trade mark classes – GOV.UK \(search-uk-trade-mark-classes.service.gov.uk\)](https://search-uk-trade-mark-classes.service.gov.uk)

££ Applications with more than one class of goods or services are subject to an additional fee of **£60** for each additional class – use continuation sheet if necessary.

Class Number	List of goods and services

Note: Items 7 to 10 below are **not** required for 99% of trade mark applications.

7. Trade mark description (Optional) If your trade mark is not a traditional trade mark such as a word, logo, picture, letters etc. You can tell us here. e.g. if it is a 3 dimensional shape or hologram.	
8. Limitation (Optional) Enter any limitations to your rights that you wish to volunteer. e.g. If you want to limit your rights to the trade mark to particular geographical areas of the UK.	
9. Disclaimer (Optional) If you want to volunteer to disclaim any rights to a part of your mark, you can do so here.	

10. Pending application (Optional)

As part of transitional arrangements for leaving the EU, you can claim priority from either a:

- a pending international trade mark claiming protection in the EU as of 31 December 2020.

You can claim the original filing date as the priority date even if this date falls outside of the usual 6 months time period given for priority claims.

I had a pending international trade mark claiming protection in the EU as of 31 December 2020

Go to section 12

11. Priority claim (Optional) If you have applied for this trade mark outside the UK in the last six months, you can claim priority by entering the details here.	Priority Claim Country	
	Application/ Registration Number	
	Priority Claim Date	
Priority claim type You must tick only one of the priority claim type options.	☐ For All Goods and Services ☐ For Some of the Goods and Services	

12. Pending international application details
(to be completed if selected from section 10).

International application number/
WIPO reference or international
registration number

Date of filing the
international application

Priority claim details (optional)

If you claimed a priority registration on your international pending application, you can claim that priority by entering the details here.

Country or office of filing

Date of priority

UK Seniority claim details (optional)

If you claimed a UK seniority on your international pending application, you can claim that priority by entering the details here.

UK Seniority registration
number

Date of UK seniority

13. Declaration

Warning! You cannot make any changes to the trade mark(s) applied for or add more goods or services to your application once it has been submitted. The application fee is non-refundable (even if the application is not acceptable).

I confirm that:

The applicant is entitled to hold property.

The terms used to describe the goods and/or services listed in this application should be given their ordinary and natural meaning.

The trade mark is being used by the applicant, or with his or her consent, in relation to the goods or services shown, or there is a bona fide intention that it will be used in this way.

I understand and accept that I cannot make any changes to the trade mark(s) applied for or add more goods or services once the application is submitted. I also accept that any application fees paid are non-refundable (even if the application is not acceptable).

Signature

This can be typed or handwritten

Name

(BLOCK CAPITALS)

Date

Number of sheets attached to this form

14. Your reference

Complete if you would like us to quote this in communications with you, otherwise leave blank.

Contact details

Name, and daytime telephone number of the person to contact in case of query.

A fee will need to be paid for this form.

Tell us how you would like to pay on the following page.

Fees and payment

We will only process the form with this section completed (one form per payment)

To check the correct fee for this form, search on [GOV.UK](https://www.gov.uk/trade-mark-forms-and-fees) for 'trade mark forms and fees'

Total Fee Paying (£)

Your own reference (Optional)

Your contact details should we have a query

Name

Email

Phone

How would you like to pay?

Tick one

☐

Using a debit or credit card – you will need the internet to pay by card

- 1 Go to our secure website – <https://fees.ipo.gov.uk/pay>
- 2 Enter your name, email address and total amount to pay from above
- 3 As proof of payment, write below the 10-character reference code displayed from the online payment screen.
DO NOT write your debit/credit card number

☐

Deduct from IPO deposit account

IPO deposit account number

☐

Cheque – make payable to 'Intellectual Property Office'

☐

Bank transfer

Reference – use your IPO deposit account number if you have one or an application number or your name if you don't.

Use the following bank account details

Sort code	20-18-23
Account number	80531766
Account name	Intellectual Property Office
SWIFT code	BARCGB22
IBAN number	GB92 BARC 2018 2380 5317 66

Before you send us your form

Make sure you have:

- ☐ Answered all applicable questions.
- ☐ Provided a signature and date at question 13. This can be typed or handwritten.
- ☐ Made payment by card, cheque, bank transfer or IPO deposit account.
- ☐ Completed the payment sheet above.

**Email your completed PDF form to:
forms@ipo.gov.uk**

If you cannot email us your form, you can print and post your form to:
Intellectual Property Office, Concept House, Cardiff Road, Newport, South Wales, NP10 8QQ.

Please note: It takes longer to process paper forms sent by post.

Data Privacy: <https://www.gov.uk/government/publications/intellectual-property-office-privacy-notices/privacy-notice-for-personal-data-processed-for-the-administration-of-ip-rights>